

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine Matejcek	Team: Squad #07	CCRB Case #: 201706167	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/22/2017 5:43 AM	Location of Incident: McDonalds at 1560 Broadway; 18th Precinct Stationhouse	18 Mo. SOL 1/22/2019	Precinct: 18		
Date/Time CV Reported Sat, 07/22/2017 7:38 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/28/2017 1:02 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Adam Abbato	15963	951476	MTN PCT
2. POM Mathew John	27787	950638	MTN PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Pellegrino	18207	957018	MTN PCT
2. SGT Michael Santoro	4522	949621	MTN PCT
3. POM Christia Matthews	31373	922723	MTN PCT
4. POM Anthony Bianco	10446	960246	MTN PCT
5. POM James Doran	17797	958519	MTN PCT
6. POM Harry Hughes	9294	954947	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Adam Abbato	Discourtesy: At 1560 Broadway in Manhattan, Police Officer Adam Abbato spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Adam Abbato	Abuse: At 1560 Broadway in Manhattan, Police Officer Adam Abbato threatened to arrest § 87(2)(b)	B . Exonerated
C . POM Mathew John	Discourtesy: At 1560 Broadway in Manhattan, Police Officer Mathew John spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Mathew John	Abuse: At 1560 Broadway in Manhattan, Police Officer Mathew John threatened to arrest § 87(2)(b)	D . Exonerated
E . POM Adam Abbato	Discourtesy: At the 18th Precinct stationhouse in Manhattan, Police Officer Adam Abbato spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Adam Abbato	Abuse: At the 18th Precinct stationhouse in Manhattan, Police Officer Adam Abbato threatened to arrest § 87(2)(b)	F . Exonerated
G . POM Mathew John	Discourtesy: At the 18th Precinct stationhouse in Manhattan, Police Officer Mathew John spoke discourteously to § 87(2)(b)	G . Unfounded

Officer(s)	Allegation	Investigator Recommendation
H . POM Mathew John	Abuse: At the 18th Precinct stationhouse in Manhattan, Police Officer Mathew John threatened to arrest § 87(2)(b) [REDACTED]	H . Unfounded

Case Summary

On July 22, 2017, § 87(2)(b) filed this complaint via phone with IAB [01 Board Review]. It was received at the CCRB on July 28, 2017.

At approximately 5:45 a.m. on July 22, 2017, § 87(2)(b) was standing across the street from the McDonald's at 1560 Broadway in Manhattan when a McDonald's security guard exited the restaurant and began to harass him. § 87(2)(b) made three attempts to enter the McDonald's and report the issue to a manager, but each time he was forced out of the store by the security guard who had been harassing him. During the course of their dispute, the security guard hit § 87(2)(b) head against a police barrier on the street. § 87(2)(b) called for an ambulance and EMTs § 87(2)(b) and § 87(2)(b) responded to the scene. At § 87(2)(b) request, the EMTs called 911, and POs Adam Abbato and Mathew John of the 18th Precinct arrived on scene. § 87(2)(b) became upset when the officers told him they would not be charging the security guard with assault. PO Abbato allegedly asked § 87(2)(b) "Why the fuck are you calling us?" and called him a "piece of shit" (**Allegation A**). He also allegedly stated "I'm going to lock your ass up if you go back into the McDonald's" (**within Allegation A; Allegation B**). PO John allegedly repeated this statement (**Allegations C and D**). § 87(2)(b) was then transported to § 87(2)(b), § 87(2)(b) [02 Board Review].

After being discharged from the hospital, § 87(2)(b) visited the 18th Precinct stationhouse intending to show officers documentation § 87(2)(b) so the security guard would be charged with assault. PO Abbato allegedly stated "Fuck off, I'm not upgrading these charges" (**Allegation E**). PO Abbato allegedly stated "Stay the fuck out of McDonald's or I'm going to lock your ass up" (**within Allegation E; Allegation F**). PO John allegedly repeated this statement (**Allegations G and H**). § 87(2)(b) left the stationhouse without further incident and was not arrested or issued a summons as a result of this incident.

No video footage was available for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation for this case. § 87(2)(b)
- As of October 19, 2017, no Notice of Claim has been filed in regard to this incident [03 Board Review].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b) third CCRB complaint. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- PO Abbato has been a member of the NYPD for five years. This is the second CCRB complaint filed against him. PO Abbato's record does not contain any substantiated allegations § 87(2)(g)
- PO John has been a member of the NYPD for six years. This is the fourth CCRB complaint filed against him. PO John's record does not contain any substantiated allegations § 87(2)(g)

Potential Issues

- § 87(2)(b) refused to describe some of the witness officers at the stationhouse because he did not want them to be involved in this investigation.
- The investigation was unable to identify the security guard who § 87(2)(b) interacted with on the night of the incident or any of the other bystanders in the vicinity who may have witnessed the alleged misconduct.

Findings and Recommendations

Allegation A – Discourtesy: At 1560 Broadway in Manhattan, Police Officer Adam Abbato spoke discourteously to § 87(2)(b)

Allegation B – Abuse of Authority: At 1560 Broadway in Manhattan, Police Officer Adam Abbato threatened to arrest § 87(2)(b)

Allegation C – Discourtesy: At 1560 Broadway in Manhattan, Police Officer Mathew John spoke discourteously to § 87(2)(b)

Allegation D – Abuse of Authority: At 1560 Broadway in Manhattan, Police Officer Mathew John threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that he made three separate attempts to enter the McDonald's and was forced out by the security guard each time. The last time, the security guard hit § 87(2)(b) head against a police barrier outside the restaurant, resulting in the concussion discussed above. EMTs § 87(2)(b) and § 87(2)(b) and PO Abbato and PO John arrived on scene. § 87(2)(b) alleged that, as he sat in the backseat of the ambulance, PO Abbato approached him and asked "Why the fuck are you calling us? Handle it yourself." PO Abbato agreed to speak with the security guard inside the restaurant, but allegedly told § 87(2)(b) that, if the security guard made an assault allegation against § 87(2)(b) they would both be arrested. During a subsequent argument, PO Abbato allegedly said "I never had respect for you, you piece of shit," and "I'm going to lock your ass up if you go back into the McDonald's." PO John allegedly repeated this statement verbatim. § 87(2)(b) testified that some of the officers' discourteous statements were made while he was sitting in the back of the ambulance, while others were made outside the ambulance in front of the McDonald's. Sgt. Michael Santoro of the 18th Precinct later arrived on scene. § 87(2)(b) was transported by ambulance to § 87(2)(b) without further incident.

§ 87(2)(b) § 87(2)(b). On the night in question, § 87(2)(b) entered the McDonald's, used profanity, argued with a security guard, and "bothered" the cashiers. She added that § 87(2)(b) frequently visits the McDonald's and harasses customers and employees. § 87(2)(b) testified that § 87(2)(b) had previously been informed by McDonald's management that he was not welcome in the restaurant. On the date in question, § 87(2)(b) and the security guard both told § 87(2)(b) to leave the McDonald's and he did not comply. When the security guard attempted to remove § 87(2)(b) from the store, § 87(2)(b) pushed him. Once § 87(2)(b) was removed from the restaurant, the police arrived on scene. § 87(2)(b) stated that she never heard any officer use profanity against § 87(2)(b) or threaten to arrest him. However, she remained inside the McDonald's for the entirety of the incident and only had limited interactions with the officers on scene.

After EMT § 87(2)(b) responded to the scene, he overheard McDonald's staff and other bystanders say that § 87(2)(b) had been trespassing at the McDonald's and had an altercation with a security guard there. He also noted that § 87(2)(b) breath smelled of alcohol. EMT § 87(2)(b) believed that officers responded to the location because § 87(2)(b) was trespassing and could be arrested. The officers told § 87(2)(b) that they would fill out a complaint reform for him, but that he had to leave the premises. EMT § 87(2)(b) also testified that officers told § 87(2)(b) that he would be handcuffed or arrested if he refused to leave the McDonald's. EMT § 87(2)(b) did not recall which officers made this statement. He did not hear any officer use profanity on scene.

PO Abbato testified that he and PO John responded to a call for an assault in progress at the McDonald's in question. PO Joseph Pellegrino and PO Anthony Bianco, also of the 18th Precinct, arrived on scene as the backing unit. PO Abbato noticed that § 87(2)(b) was intoxicated because his breath smelled of alcohol, his eyes were bloodshot, and he was shouting and slurring his speech. PO Abbato spoke with the security guard, who stated that § 87(2)(b) entered the McDonald's and began to curse and yell at customers and employees while intoxicated. The security guard told PO Abbato that he asked § 87(2)(b) to leave several times before physically escorting him out of the restaurant. His manager, § 87(2)(b) provided the same account. As PO Abbato spoke with McDonald's employees, PO John asked two other witnesses what had happened and was told that the security guard did not assault § 87(2)(b) as he had alleged. Based on this information, PO Abbato determined that § 87(2)(b) and the security guard could each be charged with harassment but not assault. PO Abbato explained this to § 87(2)(b) and he became "irate" and began to pace back and forth, flail his arms, and scream. Sgt. Santoro arrived and agreed that the charges should be harassment rather than assault. Given that the security guard and § 87(2)(b) stated that § 87(2)(b) was no longer allowed at that location, PO Abbato informed § 87(2)(b) that he could be arrested if he returned. PO Abbato denied using profanity against § 87(2)(b) in any context and did not hear any other officer do so.

PO John's testimony was § 87(2)(g) that § 87(2)(b) was apparently intoxicated and the officers' specific roles in interviewing the involved parties. PO John wrote down the names and phone numbers of two witnesses who stated that § 87(2)(b) had been binge drinking and "picking fights" that evening. PO John also spoke to 15-20 other witnesses, all of whom denied observing the alleged assault. After speaking to these witnesses, PO John entered the McDonald's and spoke briefly with § 87(2)(b). § 87(2)(b) told PO John that § 87(2)(b) was no longer allowed inside the McDonald's and that she had informed him

of this. Either PO John or PO Abbato told § 87(2)(b) that he could be arrested if he returned to the restaurant. Like PO Abbato, PO John denied that any officer used any form of profanity against § 87(2)(b).

Sgt. Santoro arrived and learned from PO Abbato that the McDonald's manager had revoked § 87(2)(b) permission to be in the restaurant due to his disorderly behavior. Sgt. Santoro never heard PO Abbato or PO John speak with § 87(2)(b) any McDonald's employees, or any witnesses. He never heard either officer threaten to arrest § 87(2)(b) or use any form of profanity against him.

PO Pellegrino testified that, when he arrived on scene, § 87(2)(b) was entering and exiting the ambulance and was "irate" because he wanted the McDonald's security guard to be charged with assault. PO Pellegrino did not recall whether a McDonald's employee told § 87(2)(b) that he could not enter the restaurant, but stated that he and another officer entered the McDonald's and may have spoken to an employee. PO Pellegrino stated that he may have told § 87(2)(b) that it would be wise to stay out of that McDonald's in the future, but denied that any officer on scene threatened to arrest § 87(2)(b) for entering the restaurant. PO Pellegrino did not hear any officer use profanity on scene.

EMT § 87(2)(b) had no recollection of this incident.

A person is trespassing when he knowingly remains unlawfully in a premises by defying a lawful order not to remain, personally communicated to him by an authorized person, Penal Law section 140.05 [06 Board Review].

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g), it is recommended that **Allegations A and C** be closed as **unsubstantiated**.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegations B and D** be closed as **exonerated**.

Allegation E – Discourtesy: At the 18th Precinct stationhouse in Manhattan, Police Officer Adam Abbato spoke discourteously to § 87(2)(b)

Allegation F – Abuse of Authority: At the 18th Precinct stationhouse in Manhattan, Police Officer Adam Abbato threatened to arrest § 87(2)(b)

Allegation G – Discourtesy: At the 18th Precinct stationhouse in Manhattan, Police Officer Mathew John spoke discourteously to § 87(2)(b)

Allegation H – Abuse of Authority: At the 18th Precinct stationhouse in Manhattan, Police Officer Mathew John threatened to arrest § 87(2)(b)

After he was discharged from the hospital, § 87(2)(b) went to the 18th Precinct stationhouse to speak with PO Abbato about § 87(2)(b). PO Abbato, Sgt. Santoro, and witness officers who § 87(2)(b) refused to describe discussed the charges to be brought against the McDonald's security guard. § 87(2)(b) was discussing the situation with one of these witness officers when PO Abbato approached and allegedly said "Fuck off, I'm not upgrading these charges." He also allegedly said "Stay the fuck out of McDonald's or I'm going to lock your ass up." PO John allegedly repeated this statement verbatim.

PO Abbato testified that the stationhouse security officer, PO Christian Matthews, was the primary officer speaking with § 87(2)(b) when he returned to the stationhouse. § 87(2)(b) was unhappy that the officers were still not willing to charge the security guard with assault, so as he walked out of the stationhouse, he shouted and cursed at PO Abbato and threatened to call IAB. PO Abbato warned § 87(2)(b) to stay out of the McDonald's and informed him that, if he returned, he would be arrested for trespassing. PO Abbato stated that his partner may have reiterated this statement, but he did not recall for sure. PO Abbato denied that any officer used profanity against § 87(2)(b) at the stationhouse.

PO Matthews was working stationhouse security when § 87(2)(b) arrived at the stationhouse. PO Matthews recognized § 87(2)(b) from previous incidents and stated that the McDonald's in question had called the police about § 87(2)(b) refusing to leave at least three times in the past. § 87(2)(b) was upset by how the officers had handled his dispute the night before and indicated this by cursing, puffing up his chest, gesturing, and pacing. As § 87(2)(b) exited the stationhouse, he began to shout at PO Abbato and threatened to call IAB. He also stated that he was going to return to the McDonald's. PO Abbato told § 87(2)(b) that he would be arrested for trespassing if he returned to the McDonald's. PO Matthews stated that no officer used profanity of any kind towards § 87(2)(b) at the stationhouse. He also noted that he and PO Abbato were the only officers speaking with § 87(2)(b).

Sgt. Santoro and PO Pellegrino were not at the stationhouse when the alleged misconduct occurred. PO John ended his tour at 7:50 a.m. on the date of the incident and was RDO the following day.

A person is trespassing when he knowingly remains unlawfully in a premises by defying a lawful order not to remain, personally communicated to him by an authorized person, Penal Law section 140.05 [06 Board Review].

§ 87(2)(g) _____, it is recommended that **Allegation E** be closed as **unsubstantiated**.

§ 87(2)(g) _____. It is therefore recommended that **Allegation F** be closed as **exonerated**.

PO John had ended his tour by the time § 87(2)(b) _____ visited the stationhouse § 87(2)(g) _____. _____
_____. _____
_____. _____
_____. It is therefore recommended that **Allegations G and H** be closed as **unfounded**.

Squad: 7

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date